

propounding party to the response. **No single entry on the Joint Separate Statement shall exceed 200 words (except as to the verbatim recitation of the requests and responses in Column Nos. 1 and 2).**

- c. **Preparation of Joint Separate Statement.** The propounding party shall prepare the initial draft of the Joint Separate Statement and fill in the information as to Column Nos. 1 through 3. The propounding party shall then provide that draft to the responding party who shall complete Column No. 4. The responding party shall then provide the draft back to the propounding party who shall then complete Column No. 5.
 - d. **Filing.** Upon completion of the Joint Separate Statement, the parties shall cooperate to arrange for its filing with the Court and ensure that both parties receive a final, file-endorsed copy of the pleading not less than one week in advance of the hearing date on the Discovery Motions.
 - e. **Courtesy Hard Copy for Department.** The parties shall also cooperate to provide a courtesy hard copy of the Joint Separate Statement to Department 20 not less than one week in advance of the hearing date on the Discovery Motions.
5. The Court shall issue the order after hearing.
6. **NOTICE REGARDING COMPLIANCE WITH ORDERS:** All parties and their counsel, if any, are hereby admonished that a failure to comply with the current orders, including, but not limited to, the orders made herein, and/or conduct which frustrates or obstructs such orders may result in the imposition of sanctions against you, including, but not limited to, an award of attorneys' fees and costs and/or monetary sanctions up to \$1,500 pursuant to Code of Civil Procedure section 177.5.

17. 9:01 AM CASE NUMBER: C25-02870
CASE NAME: JANE DOE M.M. VS. MT. DIABLO UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING COMPLIANCE WITH PLTFS DEPO**
SUBPOENA FOR PROD OF BUSINESS RECORDS
FILED BY: JANE DOE M.M.
TENTATIVE RULING:

Plaintiff Jane Doe M.M. ("Plaintiff") filed a motion to compel compliance with deposition subpoena for production of business records on February 27, 2026 (the "Motion to Compel"). By the Motion to Compel, Plaintiff seeks an order compelling non-party Clayton Police Department/The City of Clayton (the "City") to produce business records subject to subpoena. The Motion to Compel was set for hearing on August 3, 2026. The motion is opposed.

Background

Plaintiff issued a subpoena to The City on December 17, 2025 seeking the following records:

DOCUMENTS REQUESTED

1. Any and all unredacted DOCUMENTS regarding a criminal investigation of Andrew Bruce Cottrell (DOB: 12/31/1969).
2. Any and all unredacted DOCUMENTS regarding child sexual abuse and/or child abuse and/or molestation and/or sexual harassment by Andrew Bruce Cottrell.
3. Any and all unredacted DOCUMENTS regarding a criminal investigation of Andrew Bruce Cottrell regarding child abuse and/or child sexual abuse and/or molestation and/or sexual harassment.
4. Any and all unredacted DOCUMENTS regarding an investigation of child abuse, and/or child sexual abuse, and/or molestation, and/or sexual harassment toward M [REDACTED] G [REDACTED] M [REDACTED] (DOB: [REDACTED] 1998).

(collectively, the “Document Requests”). See Memorandum of Points and Authorities filed as part of Motion to Compel (“MPA”), p. 1; **Exhibit A** of the Declaration of Simona Danesh filed as part of Motion to Compel (“Danesh Decl.”) and Attachment 3 thereto, p. 2.

The City served written objections on December 31, 2025. MPA, p. 1.

Plaintiff describes meet and confer efforts on or about February 11, 2026, which were substantially unsuccessful in resolving the discovery dispute. Motion to Compel, p. 2.

Plaintiff subsequently filed the Motion to Compel. The Proof of Service filed February 27, 2026 reflects service of the Motion to Compel and related documents on The City’s counsel.

The City filed an opposition on July 21, 2026 (the “Opposition”).

Plaintiff filed a reply on July 27, 2026 (the “Reply”).

Analysis

As a preliminary matter, the City contends in its Opposition that no separate statement was filed pursuant to California Rules of Court, rule 3.1345(a)(5), (c). Opposition, p. 3. As Plaintiff points out in the Reply, a separate statement was filed on February 27, 2026. See Reply, p. 1; Separate Statement ISO Motion to Compel filed February 27, 2026. The Proof of Service filed February 27, 2026 reflects service on the City.

The Court turns to the merits.

If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production. Code Civ. Proc. § 2025.480(a).

The California Constitution guarantees a right to privacy. Cal. Const., art. I, § 1. Where the right to privacy is implicated, courts weigh the loss of privacy against the “legitimate and important countervailing interests disclosure serves.” *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 (“*Williams*”).

The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. *Williams, supra*, 3 Cal.5th at 552. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection

may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. *Id.* A court must then balance these competing considerations. *Id.* Obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest. *Id.*

Penal Code section 11167.5 restricts the disclosure of reports made by mandated reporters to only enumerated persons and agencies. See Pen. Code § 11167.5(a), (b).

Here, the City contends that the Document Requests violate the privacy rights of third parties, violate Penal Code section 11167.5, and are overly broad. See Danesh Decl., p. 5 *et seq* and **Exhibit B** thereto (including Objections of The City to Subpoena); Opposition, p. 5. The City further objects based on Welfare and Institutions Code section 827. *Id.*; see also Reply, p. 1. It appears that objection was resolved through meet and confer efforts, as it is absent from the Opposition. *Id.*

The Court finds that the third-party privacy concerns do not completely outweigh Plaintiff's important countervailing interests with respect to discovery regarding the documents and matters at issue. As to Penal Code section 11167.5 and the other statutory limitations on disclosure of protected material/files, they do not completely bar the discovery sought, subject to proper redaction of any information covered by the statutes.

Still, the information put before the Court fails to establish good cause for production of records **to the extent specified** in the Document Requests. The court notes that the Document Requests seek an extraordinarily broad scope of records. Furthermore, the requested documents implicate third party privacy rights of an extremely sensitive nature.

While the Court is not inclined to grant the Motion to Compel in its entirety, the Court does conclude, in weighing the competing interests in light of the totality of the circumstances and applicable statutory requirements, that it is just and appropriate to limit the scope of the Document Requests as discussed below.

Document Requests Nos. 1, 2, and 3

The City shall produce records responsive to Document Requests Nos. 1, 2, and 3 ONLY to the following extent (a) any and all reports, summaries or investigative notes, including, but not limited to police or other investigative reports ("Reports") relating to the topics set forth in the Document Requests. The Reports to be produced shall not include any Reports authored by counsel for the City that constitute work product or attorney-client communications. **The names and personal information of any mandated reporters or third-party victims that are included in such Reports are to be redacted.**

If the requesting party believes it necessary to obtain any further documents, including any primary evidence referred to in the Reports such as medical records or photographs, the parties are ordered to meet and confer after production and review of the Reports to discuss the production of further particularly identifiable documents. If meet and confer efforts are unsuccessful, the Court reserves jurisdiction over this matter as it relates to issuing further orders in accordance with this ruling.

The Motion to Compel is **GRANTED IN PART** as to these requests.

Document Request No. 4

The City shall produce records responsive to this request to the extent such records exist. However, the names and personal information of any mandated reporters or third-party victims that are included in such documents are to be REDACTED. The Motion to Compel is **GRANTED** as to this request.

Protective Order

Any and all documents produced pursuant to this order shall be subject to a protective order as agreed upon by both parties and approved by the Court. The parties are ordered to meet and confer regarding suitable terms for a protective order within thirty (30) days of notice of entry of this order.

Sanctions

The City's Opposition makes arguments against the imposition of sanctions, however, as noted in Plaintiff's Reply, the issue of sanctions has not been raised. See Opposition, p. 6; Reply, p. 5.

In any event, in light of the foregoing, the Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) ("The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

Disposition

The Court hereby finds and orders as follows:

1. The Motion to Compel is **GRANTED IN PART** as specified above.
2. The parties are ordered to meet and confer regarding a protective order for any and all documents produced within **thirty (30) days** of notice of entry of this order.
3. The Court reserves jurisdiction over this matter as it relates to issuing further orders in accordance with this ruling.
4. Any and all sanction requests are denied.
5. Moving party to prepare the order after hearing.

Law & Motion
Add On

18. 9:00 AM CASE NUMBER: C25-01690
CASE NAME: SHIMMICK CONSTRUCTION COMPANY, INC. VS. CITY OF ANTIOCH
ORDER DESIGNATING CASE COMPLEX UNDER CRC 3.400
FILED BY: CITY OF ANTIOCH
TENTATIVE RULING:

Defendant City of Antioch (the “City”) filed a Motion for Order Designating Case Complex on February 20, 2026 (the “Complex Case Designation Motion”). The Court, on its own motion, reset the Complex Case Designation Motion for hearing on July 8, 2026 in the Court's Complex Litigation Department, Department 16 before Judge Reyes. See Local Rule 3.16(6). The matter was set back over before Department 34, to be heard on August 3, 2026.

Background

The City seeks a determination that the matter is a “complex case” within the meaning of Rule 3.400 of the California Rules of Court (CRC) and requires exceptional judicial management under the rules governing case management in matter designated as complex.

The request is opposed.

Analysis

There are a number of factors that courts must consider in determining whether a case should be deemed a “complex case” or not. Those factors include whether the action is likely to involve:

- (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve;
- (2) Management of a large number of witnesses or a substantial amount of documentary evidence;
- (3) Management of a large number of separately represented parties;
- (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or
- (5) Substantial postjudgment judicial supervision.

See CRC 3.400(b).

The Court has considered the foregoing factors in light of the Court’s docket herein, the pleadings and the arguments by all parties regarding the nature of the case and likely scope of it. Among other things, the Court has considered the likely scope of discovery, including third party discovery.